

Babli Jain v. State of U.P.

Allahabad High Court · Division Bench · 5 August 2019 · Writ-C No. 23880 of 2019 · Writ-C No. 23880 of 2019 · **Mandamus refused; petition consigned to record. Occupier connection governed by Code indemnity.**

HEADNOTE

The Allahabad High Court consigned to record a writ seeking to restrain new electricity connections in the petitioner's house without her consent. The Court held that her apprehension of a third-party connection fastening liability on her was not borne out by the record; that the Electricity Supply Code, 2005 fully addresses such situations; and that an authorized occupant applying for a new connection must submit an indemnity bond. The electricity department would give effect to that requirement, and the petitioner could raise her plea if and when a connection was granted.

FACTUAL SUMMARY

Babli Jain, claiming ownership and possession of House No. 409, Nai Basti, Firozabad for about ten years, filed a writ petition seeking mandamus that the State and electricity authorities not grant any new power connection in the house without her consent. She relied on a representation dated 16 July 2019, alleging that contesting respondents were attempting to obtain a new connection and thereby fasten electricity liability on her.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

occupier-new-connection-indemnity

HOLDING

An owner is not entitled to a pre-emptive mandamus restraining the licensee from granting any new connection in her premises without her consent. The Electricity Supply Code, 2005 fully addresses such matters: an authorized occupant may apply for a fresh or new connection, but an indemnity bond is then required, and the electricity department is to give effect to that requirement. The owner's objection may be raised if and when a connection is granted. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER A NEW CONNECTION SHOULD ACTUALLY BE GRANTED IN HOUSE NO. 409, NAI BASTI, FIROZABAD, AND ANY OBJECTION THE PETITIONER MAY THEN RAISE

The Court left it open to the petitioner to raise her plea if and when a connection is granted. ¶ 1